



CHAPTER xiv.

An Act to establish a new superannuation fund for the officers and servants of the Corporation of London by the amalgamation of the superannuation and pension funds established under the City of London (Various Powers) Act 1912 to extend the powers of the Corporation with respect to the Metropolitan Cattle Market and for other purposes. [27th March 1931.] A.D. 1931.

WHEREAS the mayor and commonalty and citizens of the city of London acting by the mayor aldermen and commons of that city in common council assembled (in this Act referred to as "the Corporation") have in pursuance of the City of London (Various Powers) Act 1912 established (a) a superannuation fund for the superannuation of officers in their service in an established capacity and servants on weekly wages exceeding forty-five shillings a week in the permanent employ of the Corporation and duly placed on the establishment staff and (b) a pension fund for the benefit of servants and workmen on weekly wages not exceeding forty-five shillings a week in the permanent employ of the Corporation and duly placed on the establishment staff :

And whereas by reason of the general increase in wages the number of servants and workmen contributing to the said pension fund has largely decreased owing to their transfer to the said superannuation fund with the result that the assets of the pension fund are largely in

A.D. 1931. — excess of its liabilities in respect of the remaining members of that fund :

And whereas it is expedient that the said funds should be amalgamated and constituted one superannuation fund for the benefit of all the officers and servants of the Corporation of the justices of the city and of the court of mayor and aldermen of the city and that the said fund should also be open to the officers of the Central Criminal Court :

And whereas further powers with reference to the superannuation and pension funds of the Corporation were conferred by the City of London (Various Powers) Acts 1914 and 1922 :

And whereas it is expedient that the provisions of existing Acts with reference to the said funds should be re-enacted and extended as in this Act provided :

And whereas the Corporation are the owners of the Metropolitan Cattle Market Islington and it is expedient that they should be empowered to provide parking places for vehicles at the said market and that further powers should be conferred with reference to the said market as in this Act contained :

And whereas it is expedient that the other provisions of this Act should be enacted :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the City of London (Various Powers) Act 1931.

Division of Act into Parts. 2. This Act is divided into Parts as follows :—
 Part I.—Preliminary.
 Part II.—Superannuation.
 Part III.—Metropolitan Cattle Market.
 Part IV.—Miscellaneous.

3. In this Act unless there be something in the subject or context repugnant to such construction—

- “the Corporation” means the mayor and commonalty and citizens of the city of London;
 “the city” means the city of London; and
 “the general rate” means the general rate of the city.

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 Interpretation.

PART II.

SUPERANNUATION.

4. This Part of this Act shall except so far as is otherwise herein expressly provided and except so far as there may be anything in the subject matter or context inconsistent therewith be deemed to have come into operation on the first day of April one thousand nine hundred and thirty-one.

Commence-
 ment of
 Part II of
 Act.

5. In this Part of this Act unless there be something in the subject or context repugnant to such construction the expression—

Interpreta-
 tion for
 Part II of
 Act.

“The Act of 1912” means the City of London (Various Powers) Act 1912;

“The appointed day” means the first day of April one thousand nine hundred and thirty-one;

“The fund” means the fund established and administered by the Corporation in pursuance of this Part of this Act;

“The justices” means the justices of the city;

“The court of aldermen” means the court of mayor and aldermen of the city;

“Officer” means every officer not less than eighteen years of age in the service of the Corporation or of the justices or of the court of aldermen in an established capacity and every servant not less than eighteen years of age on weekly wages exceeding with emoluments forty-five shillings a week in the permanent employ of the Corporation or of the justices or of the court of aldermen and duly placed on the establishment staff and includes the holders from time to time of the following offices registrar of the Mayor’s and City of London Court high

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bailiff of the Mayor's and City of London Court and bailiffs of the Mayor's and City of London Court;

“Servant” means every servant or workman not less than eighteen years of age on weekly wages not exceeding with emoluments forty-five shillings a week in the permanent employ of the Corporation or of the justices or of the court of aldermen and duly placed on the establishment staff;

“Service” means service under the Corporation or the justices or the court of aldermen or as regards an officer or servant transferred to the Corporation from the Commissioners of Sewers of the city of London also service under the said commissioners or as regards an officer or servant previously in the employ of any other predecessors of the Corporation also service under such predecessors;

“Aggregated service” means service as above defined together with any service under any public or local authority or authorities (other than the Corporation) which shall be aggregated and reckoned in accordance with the provisions of the section of this Act whereof the marginal note is “Service under other authorities”;

“Emoluments” includes all fees poundage and other payments made to any officer or servant as such by the Corporation or the justices or the court of aldermen for his own use also the money value of any apartments rations or other allowance in kind appertaining to his office or appointment but does not include casual payments or gratuities or payments in respect of overtime;

“Joint appointment” includes any office the tenure whereof is determined by the death removal resignation or incapacity of the holder of another office under the Corporation or the justices or the court of aldermen;

“Provident fund” means a fund of a society constituted exclusively from amongst the servants of the Corporation or of the justices or of

the court of aldermen as provided in the section of this Act whereof the marginal note is "Power to contribute to provident fund";

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"Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

"Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation.

6.—(1) On the appointed day there shall be established a new superannuation fund (in this Act referred to as "the fund") to be called "the Corporation of London superannuation fund" for persons who are or who shall hereafter become officers or servants of the Corporation or of the justices or of the court of aldermen.

Establish-
ment of
superannua-
tion fund.

(2) The fund shall be constituted by the amalgamation of the superannuation fund and the pension fund established by the Act of 1912 and all moneys standing to the credit and all other assets of either of the said funds shall be transferred to the fund.

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(3) All contributions and other payments which but for this Act would have been payable into the said existing funds shall be paid into the fund and all superannuation allowances pensions and other payments which but for this Act would have been payable out of the said existing funds shall be paid out of the fund.

Administra-
tion of fund.

7.—(1) The Corporation shall administer the fund to which shall be carried and credited—

- (a) A sum (in this Part of this Act called “the primary annual contribution”) to be raised annually in and by the general rate to bear such a proportion to the total salaries or wages and emoluments of the officers and servants as hereinafter provided;
- (b) All amounts of salary or wages and emoluments deducted as in this Act provided and any amounts that may be received by the Corporation under the provisions of the section of this Act whereof the marginal note is “Additional contributions in respect of service under other authorities”;
- (c) All contributions and other payments which but for this Act would have been payable into the superannuation fund or the pension fund established by the Act of 1912;
- (d) All dividends and interest arising out of the investment of the fund or any part thereof; and
- (e) Such amounts out of the general rate as may be required to meet any deficiency in the fund.

(2) The following shall be charged upon the fund (namely):—

- (a) Superannuation allowances made in pursuance of this Act including all superannuation allowances pensions and other payments which but for this Act would have been payable out of the superannuation fund or the pension fund established by the Act of 1912; and
- (b) Contributions or parts of contributions returned or other sums paid in pursuance of this Act.

Obligation
of officers
and servants
to contri-
bute.

8. Subject to the provisions of this Act every officer and servant shall contribute to the fund according to the scale provided by this Act and the amount of such

contribution shall be deducted by the Corporation from every payment by way of salary or wages and emoluments made to him and shall be carried to the credit of and form part of the fund. Provided that any such deduction from payments to an officer shall not be calculated to fractions of one penny. Provided also that deductions in respect of emoluments other than monetary payments shall be made by instalments or otherwise as the Corporation may from time to time direct. A.D. 1931.

9. The percentage amounts to be deducted in the case of officers for the purposes of the fund shall be subject to the provisions contained in the section of this Act whereof the marginal note is "Additional contributions in respect of service under other authorities" be as follows (that is to say) :—

Scale of contributions by officers.

In the case of officers with less than five years' service or aggregated service on the seventh day of August one thousand nine hundred and twelve or appointed after that day two and a half per centum of the annual salary or wages and emoluments;

In the case of officers with more than five and less than fifteen years' service or aggregated service on the seventh day of August one thousand nine hundred and twelve three per centum of the annual salary or wages and emoluments; and

In the case of officers with more than fifteen years' service or aggregated service on the seventh day of August one thousand nine hundred and twelve three and a half per centum of the annual salary or wages and emoluments :

Provided that in the case of officers whose salary or wages and emoluments for the time being do not exceed one hundred and twenty pounds a year the percentage amounts to be deducted shall be two per centum of their annual salary or wages and emoluments :

Provided also that for the purposes of this section salary or wages and emoluments shall be computed on the basis of the salary or wages and emoluments paid when working full time.

10. Any officer appointed by the Corporation or the justices or the court of aldermen after the seventh day of August one thousand nine hundred and twelve

Additional contributions in

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—
respect of
service
under other
authorities.

in whose case any period or periods of service under any public or local authority or authorities other than the Corporation or their predecessors are aggregated and reckoned as in this Act provided shall at the option of the Corporation in addition to the contributions provided by the last preceding section of this Act pay or contribute either—

- (a) the aggregate amount of any contributions and gratuities which may have been returned or paid to him on the termination of any period or periods of service which are so aggregated and reckoned as aforesaid by the authority or authorities under whom such service has been spent; or
- (b) annually by such instalments and in such manner as aforesaid for each aggregated period of ten years or part thereof a sum equivalent to one per centum of the annual salary or wages and emoluments received by such officer.

Scale of
contribu-
tions by
servants.

11. The amounts to be deducted in the case of servants for the purposes of the fund shall be as follows (that is to say):—

In the case of servants whose wages and emoluments do not exceed twenty-five shillings per week fourpence per week;

In the case of servants whose wages and emoluments exceed twenty-five shillings per week but do not exceed thirty shillings per week fivepence per week;

In the case of servants whose wages and emoluments exceed thirty shillings per week but do not exceed thirty-five shillings per week sixpence per week;

In the case of servants whose wages and emoluments exceed thirty-five shillings per week but do not exceed forty shillings per week sevenpence per week;

In the case of servants whose wages and emoluments exceed forty shillings per week eightpence per week :

Provided that in the case of any servant whose wages and emoluments do not exceed twenty shillings per week

no such deduction shall be made except on the request in writing of such servant and after such request the subsequent period of service of such servant shall be reckoned "years service" under the provisions of this Act but any servant from whose wages and emoluments no such deduction is made shall not be entitled to receive any pension gratuity or other benefit under this Act: A.D. 1931.

Provided also that for the purposes of this section wages and emoluments shall be computed on the basis of the wages and emoluments paid when working full time.

12.—(1) Subject to the provisions of this Act every officer or servant who shall be a contributor to the fund and—

Title of
officers and
servants to
superannu-
ation allow-
ances.

(a) shall have completed ten years' service or in the case of an officer aggregated service and shall become incapable of discharging his duties with efficiency by reason of permanent infirmity of mind or body (other than permanent incapacity due to an injury in respect of which he receives compensation under the Workmen's Compensation Act 1925 or any scheme made thereunder) or of old age; or

(b) shall have attained the age of sixty years and have completed a service or in the case of an officer aggregated service of forty years; or

(c) shall have attained the age of sixty-five years;

shall be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life out of the fund a superannuation allowance according to the scale by this Act provided.

(2) An officer or servant shall not be entitled to a superannuation allowance on the ground of old age unless he has completed the age of sixty years.

(3) Where an officer or servant has attained the age of sixty-five years he shall cease to hold his office or employment and shall thereafter receive the superannuation allowance to which he may be entitled under this Act. Provided that the Corporation may by resolution extend his period of service or employment for one year and so from time to time as they may deem expedient.

(4) Notwithstanding anything in this Act contained any superannuation allowance which may be granted to

A.D. 1931. any officer or servant who on the seventh day of August one thousand nine hundred and twelve had attained the age of sixty years and had completed a service or in the case of an officer aggregated service of forty years or had attained the age of sixty-five years shall be paid out of the general rate and not out of the fund.

(5) Any officer or servant who in respect of permanent incapacity due to an injury receives under the Workmen's Compensation Act 1925 or any scheme made thereunder compensation of a less amount than the superannuation allowance to which he would have been entitled if he had been entitled to receive a superannuation allowance under this section shall be entitled to receive the amount by which such allowance exceeds such compensation.

Scale of
superannua-
tion allow-
ances.

13.—(1) The superannuation allowance to be made under this Act to an officer shall be after ten years' service or aggregated service ten-sixtieths of the average amount of his annual salary or wages and emoluments during the five years ending on the quarter day which immediately precedes the day on which he ceases to hold his office or employment and after he has completed eleven years' service or aggregated service such superannuation allowance shall be increased by one-sixtieth for every complete year of service or aggregated service over and above ten years up to a maximum of forty years' service or aggregated service :

Provided that the average amount of salary or wages and emoluments shall be computed on the basis of the salary or wages and emoluments paid when working full time.

(2) The superannuation allowance to be made under this Act to a servant who shall have completed thirty years' service shall be according to the following scale (that is to say) :—

A servant who at the time of ceasing to hold his employment was contributing fourpence per week to the fund twelve shillings and sixpence per week ;

A servant who at the time of ceasing to hold his employment was contributing fivepence per week fifteen shillings per week ;

A servant who at the time of ceasing to hold his employment was contributing sixpence per week seventeen shillings and sixpence per week; A.D. 1931.
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A servant who at the time of ceasing to hold his employment was contributing sevenpence per week one pound per week;

A servant who at the time of ceasing to hold his employment was contributing eightpence per week twenty-two shillings and sixpence per week :

Provided that the superannuation allowance to be paid to a servant who becomes entitled to and receives such allowance before he has completed thirty years' service shall be reduced by one-thirtieth for every year's or part of a year's service less than thirty years and the superannuation allowance to be paid to a servant who becomes entitled to and receives such allowance after he has completed thirty years' service shall be increased by one-thirtieth for every complete year of service over and above thirty years up to a maximum of forty years' service.

(3) In the event of an officer or servant being reduced to a lower rate of salary or wages and emoluments for any cause whatsoever (other than misconduct) he may if he so desire continue to contribute to the fund at the same rate as at the time such reduction took place in which case he shall be entitled to the scale of superannuation allowance covered by such contributions.

(4) The Corporation in computing the amount of superannuation allowance to any officer or servant may in consideration of peculiar professional qualifications or of special circumstances add a number of years' service not exceeding ten to the number of years' service of such officer or servant or aggregated service of such officer.

14. Subject to the deduction of the increased percentage amounts to be contributed in that behalf as in this Act provided all periods of service by an officer rendered under and as an officer of any public or local authority or authorities (other than the Corporation) may at the option of the Corporation be aggregated and reckoned for the purposes of this Act whether the whole time of such officer has been devoted to such service or not : Service under other authorities.

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Provided that no period of service shall be so aggregated and reckoned which has been or may be aggregated and reckoned for the purpose of superannuation allowances or gratuities under any Act (other than the Act of 1912 or this Act) except in cases where such superannuation allowance or gratuity was payable by the Corporation and has been commuted in consideration of a new appointment as an officer :

Provided also that no period of service under any other authority shall be so aggregated and reckoned in the case of an officer appointed prior to the seventh day of August one thousand nine hundred and twelve who gave notice in writing within six months thereafter requiring that such period of service should not be so aggregated and reckoned :

Provided further than in the case of an officer appointed subsequently to the seventh day of August one thousand nine hundred and twelve no period of service under any authority or authorities whereof the duties or powers had not been transferred to the Corporation shall be so aggregated and reckoned unless such officer declares prior to his appointment and proves to the satisfaction of the Corporation within a period of three months from the date of such appointment that he has been in the service or employment of any such authority or authorities and the Corporation on the application of such officer in such case may at their discretion direct whether the whole or any part of such period of service shall or shall not be so aggregated and reckoned and no such period of service shall be so aggregated and reckoned which has been or may be reckoned for the purpose of superannuation allowances or gratuities under any Act other than the Act of 1912 or this Act.

Contributions to
cease after
forty years'
service.

15. Notwithstanding anything contained in this Act any officer or servant who on the appointed day has attained or who thereafter attains the age of sixty-five years and has completed forty years' service or aggregated service shall not be required to contribute to the fund.

Forfeiture
for miscon-
duct.

16. An officer or servant who is dismissed or resigns or otherwise ceases to hold his office or employment in consequence of any offence of a fraudulent character or grave misconduct shall forfeit all claim to any superannuation allowance under this Act in respect of his

A.D. 1931.

Return of contributions and power to grant gratuities and superannuation allowances in certain cases.

- Return of contributions and power to grant gratuities and superannuation allowances in certain cases.

shall be entitled to receive a sum equal to the amount of all his contributions under the Act of 1912 and this Act.

(2) In any such case of cesser or loss of office or employment as in this section mentioned the Corporation may also if they see fit grant to an officer or servant a gratuity not exceeding twice the amount of his salary or wages and emoluments during the year ending on the quarter day which immediately precedes the day on which he ceases to hold his office or employment but every such gratuity shall be paid out of the general rate and not out of the fund.

(3) When such cesser or loss of office or employment occurs in a case in which the death or insanity of one of the holders of a joint appointment vacates the office or employment of the other the officer or servant whose office or employment is so vacated shall unless he is re-appointed and except where in the case of a husband and wife the joint appointment is terminated owing to the misconduct of one of them be entitled to receive during life a superannuation allowance according to the scale provided by this Act if such officer or servant has attained the age of fifty years or has served for not less than twenty years.

Payments at death in certain cases.

A.D. 1931. — the legal personal representatives of such officer or servant such a sum as the Corporation may think fit but such sum shall not be less than shall be sufficient to make up one year's superannuation allowance to such officer or servant when added to any superannuation allowance already paid to him.

Return of
contribu-
tions in case
of death.

19. In the event of an officer or servant dying before becoming entitled to or receiving a superannuation allowance under this Act the Corporation shall pay to his legal personal representatives out of the fund the amount of the contributions made by such officer or servant under the Act of 1912 or this Act.

Allowance
not assign-
able.

20. Every superannuation allowance granted under the Act of 1912 or this Act shall be payable to or in trust for the officer or servant and shall not be assignable or chargeable with his debts or other liabilities.

Actuarial
investiga-
tion.

21. At the expiration of the quinquennial period expiring on the thirty-first day of March one thousand nine hundred and thirty-three and at the expiration of every subsequent period of five years the condition of the fund shall be submitted by the Corporation to an actuary being a fellow either of the Institute of Actuaries or of the Faculty of Actuaries in Scotland appointed by them who shall consider the same and shall make an actuarial valuation of the fund and on the basis of such valuation shall certify what proportion in his opinion the primary annual contribution shall bear to the total salaries or wages and emoluments of the officers and servants contributing to the fund so that such proportion shall at all times be as nearly constant and vary as little as may be and so that without further recourse to the general rate the fund as constituted under paragraphs (a) (b) (c) and (d) of subsection (1) of the section of this Act of which the marginal note is "Administration of fund" shall be solvent (having regard to existing and prospective liabilities) and for the then ensuing quinquennial period the primary annual contribution shall be in the proportion so certified and shall be paid to the fund accordingly :

Provided that until the thirty-first day of March one thousand nine hundred and thirty-three the primary annual contribution shall be that certified by the actuary in the year one thousand nine hundred and twenty-eight in respect of the funds established under the Act of 1912.

22.—(1) Where an officer or servant in receipt of a superannuation allowance under this Act is appointed to any office or employment by the Corporation or any other local authority or by the justices or the court of aldermen such allowance shall cease to be paid so long as he continues to hold such office or employment if the salary or wages and emoluments thereof are equal to or in excess of the amount of such allowance and if they are not then only so much of such allowance shall be paid so long as he holds such office or employment as will make up the deficiency.

A.D. 1931.
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Subsequent
appoint-
ments.

(2) Any such person on ceasing to hold such office or employment shall be entitled to revert to and receive the full amount of his original superannuation allowance.

23.—(1) The Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of the fund and not required for the time being to meet payments under this Act but subject to the following conditions:—

Investment
of fund.

- (a) The moneys so used shall be repaid to the fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable;
- (b) Interest shall be paid to the fund on any moneys so used and for the time being not repaid to the fund. Such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power;
- (c) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power.

(2) Any moneys forming part of the fund which are not so used shall be invested in any statutory securities.

A.D. 1931.

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Application
of super-
annuation
scheme of
1930.

Application
of Part II to
officers and
servants of
justices and
court of
aldermen.

24. The Corporation of the City of London (Transferred Poor Law Officers') Superannuation Scheme 1930 shall be read and have effect as if Part II (Superannuation) of this Act were referred to therein in lieu of the Act of 1912.

25. In construing this Part of this Act for the purpose of its application to officers and servants in the service of the justices or of the court of aldermen the discretionary powers which are conferred upon the Corporation by the following provisions of this Act shall be exerciseable by the justices or the court of aldermen as the case may be by resolution to which the Corporation shall give effect (that is to say):—

- (a) The proviso to subsection (3) of the section of this Act of which the marginal note is "Title of officers and servants to superannuation allowances";
- (b) The proviso to the section of this Act of which the marginal note is "Forfeiture for misconduct";
- (c) Subsection (2) of the section of this Act of which the marginal note is "Return of contributions and power to grant gratuities and superannuation allowances in certain cases"; and
- (d) The section of this Act of which the marginal note is "Payments at death in certain cases."

Appnucation
of Part II to
officers of
Central
Criminal
Court.

26. The officers and bailiffs and criers of the Central Criminal Court (in this section referred to as "the said officers") who are appointed by the Central Criminal Court shall for the purposes of this Part of this Act be deemed to be and to have been officers in the service of the Corporation and appointed by the Corporation and in construing this Part of this Act for the purpose of its application to the said officers the following provisions shall have effect (that is to say):—

- (a) The salary and emoluments of the said officers as officers of the Central Criminal Court shall be deemed to be salary and emoluments paid by the Corporation;
- (b) The expression "the appointed day" shall be substituted for "the seventh day of August one thousand nine hundred and twelve";

- (c) The deduction from salaries and emoluments referred to in the section of this Act of which the marginal note is "Obligation of officers and servants to contribute" shall be made by the parties paying such salaries and emoluments and shall be paid to the Corporation and by them carried to the credit of the fund; A.D. 1931.
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- (d) The Central Criminal Court shall be substituted for the Corporation in subsection (3) of the section of this Act of which the marginal note is "Title of officers and servants to superannuation allowances" and subsection (4) of that section shall not apply to the said officers;
- (e) No period of service shall be aggregated and reckoned under the section of this Act of which the marginal note is "Service under other authorities" in a case where any of the said officers is unable to prove to the reasonable satisfaction of the Corporation within a period of six months after the appointed day that he has been in the service or employment of any such authority as is referred to in the said section;
- (f) Any of the said officers in the service of the Central Criminal Court at the appointed day may at any time within three months thereafter signify in writing to the Corporation his intention not to avail himself of the provisions of this Part of this Act and in that event it shall not be obligatory on him notwithstanding anything in this Act contained to make any contributions or submit to any deductions from his salary and emoluments under this Act nor shall he be entitled to receive any superannuation allowance gratuity or other benefit under this Act.

27. Nothing in this Act shall prejudice or affect any officer whose period of service shall before the appointed day have been aggregated and reckoned for the purposes of the Act of 1912. Saving for officers with aggregated service.

28. Notwithstanding anything in this Act any officer or servant in the service or employment of the Corporation or of the justices or of the court of Saving for certain officers and servants.

A.D. 1931. — aldermen on the seventh day of August one thousand nine hundred and twelve who within three months thereafter signified in writing to the Corporation his intention not to avail himself of the provisions of the Act of 1912 shall not be required to make any contributions or submit to any deductions from his salary or wages and emoluments under this Act nor shall he be entitled to receive any superannuation allowance gratuity or other benefit under this Act.

Arbitration. **29.** Any question which may arise between the Corporation and any officer or servant as to the right to or the amount of a superannuation allowance or the amount of the contribution of such officer or servant shall in default of agreement be submitted to arbitration in accordance with the provisions of the Arbitration Act 1889 or any subsisting statutory modification thereof.

Application of provisions of Friendly Societies Act 1896. **30.** The Corporation shall in respect of the fund be registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 and sections 28 and 41) so far as they are applicable and are not inconsistent with the provisions of this Act shall apply as if (a) the Corporation were a society to which that Act applies and were the trustees of such society (b) the provisions of this Act relating to the fund were the rules of such society (c) the fund were the fund of such society and (d) the contributors to the fund were the members of such society :

Provided that the Corporation shall send to the registrar under the said Act a copy of any certificate and report made in pursuance of the section of this Act of which the marginal note is " Actuarial investigation."

Power to contribute to provident fund. **31.—(1)** The Corporation in addition to the other powers conferred upon them by this Act but not in substitution therefor may at their discretion on such terms and conditions and subject to such restrictions and reservations in every respect as they think expedient contribute out of the general rate in respect of servants to the funds of a society registered under the Friendly Societies Act 1896 constituted exclusively from amongst their servants for the purpose of providing by contributions or subscriptions for amongst other matters—

The relief or maintenance of the members of such society during sickness ;

The relief or maintenance of the orphan children of deceased members of such society; A.D. 1931.

Insuring the payment of money on the death of a member;

The funeral expenses of a member or the wife of a member of such society.

(2) The Corporation may for the purposes of this section contribute such sums as they may from time to time determine not exceeding in the aggregate such an amount as would be equivalent to an aggregate of twopence for each and every weekly contribution of not less than fourpence to be made to the funds of such society by the members thereof respectively.

(3) Nothing in this Act contained shall render it compulsory upon any servant to become a member of any society which may be constituted as aforesaid.

32.—(1) Notwithstanding anything contained in the rules of the Corporation of London Officers' Pension Funds No. 1 and No. 2 no person shall be required or eligible to join or become a member of either of the funds to which those rules relate. Provisions as to Corporation of London Officers' Pension Funds No. 1 and No. 2.

(2) Notwithstanding anything contained in the rules of either of the said funds all contributions and other payments which but for the City of London (Various Powers) Act 1922 would have been payable by the Corporation into or in respect of the conduct and management of either of the said funds shall be paid out of the general rate.

(3) Any officer or servant who was formerly a member of either of the said funds and was transferred to the superannuation or pension fund as the case may be established by the Act of 1912 shall be transferred to the fund and the provisions of this Part of this Act shall so far as applicable apply to any officer or servant so transferred.

33. The following enactments are hereby repealed (namely) :— Repeal.

The Act of 1912—

Section 3 (Interpretation) so far as it relates to the definitions of " officer " " servant " " service " " aggregated

A.D. 1931.

service " " emoluments " " joint appointment " " superannuation fund " " pension fund " and " provident fund " ;

Part IV—Superannuation ; and

Part V—Pensions.

The City of London (Various Powers) Act 1914—

Section 31 (As to aggregated service in respect of superannuation scheme under Act of 1912).

The City of London (Various Powers) Act 1922—

Part III—Superannuation and pensions.

PART III.

METROPOLITAN CATTLE MARKET.

Prohibiting sale of betting tips in Metropolitan Cattle Market.

34. Any person who in the market defined in section 3 (Site of market defined) of the Metropolitan Market Act 1896 shall sell publish or distribute any information (otherwise than in a newspaper registered in pursuance of the Post Office Act 1908) as to the probable result of any race game or sport or of any other competition shall be liable to a penalty not exceeding forty shillings and for a second or subsequent offence to a penalty not exceeding five pounds.

Provision of parking places at Metropolitan Cattle Market.

35.—(1) The Corporation may provide and appoint suitable places in the market defined in section 3 (Site of market defined) of the Metropolitan Market Act 1896 where vehicles or vehicles of any particular class or description may wait (in this section referred to as " parking places ").

(2) The Corporation may make regulations as to the use of parking places and in particular as to the use of the vehicles or class of vehicles which may be entitled to use the same as to the conditions upon which any parking place may be used and as to the charges to be paid to the Corporation in connection with the use thereof and a copy of any such regulations shall be exhibited on or near to any parking place to which the regulations relate.

PART IV.

A.D. 1931.

MISCELLANEOUS.

36. Section 29 (Projections in streets &c.) of the City of London (Various Powers) Act 1911 shall (subject to the provisions of that section) extend to empower the Corporation to make and enforce byelaws for the purpose of—

Further powers as to projections in streets searchlights &c.

(a) limiting the number of street projections referred to in the said section which may be fixed or fitted to any building; and

(b) prohibiting or restricting the use of searchlights floodlights flashlights and intermittent illuminations;

and the said Act of 1911 shall be read and have effect accordingly:

Provided that nothing in this section shall extend or apply to any floodlight of the Metropolitan District Railway Company now existing or to any floodlight which may hereafter be provided or set up by that company with the consent of the Corporation or to any similar floodlight that may hereafter be provided or set up to replace any such existing or future floodlight provided the same be of similar dimensions and character to such existing or future floodlight.

37. The costs charges and expenses preliminary to and of and incidental to the preparing obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate.

Costs of Act.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of Acts of Parliament.

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